

Court No. - 21

Case :- WRIT - C No. - 30278 of 2016

Petitioner :- Umesh Nath Pandey

Respondent :- P.V.V.N.L. And 2 Others

Counsel for Petitioner :- Santosh Kumar Tiwari

Counsel for Respondent :- Mahboob Ahmad

Hon'ble V.K. Shukla, Acting Chief Justice

Hon'ble Mahesh Chandra Tripathi, J.

On the matter being taken up today, the factual position, that is so emerging is that petitioner, has not at all proceeded to ensure payment of the electricity dues in question and in pith and substance, the petitioner is contending that his name is liable to be corrected and the electricity bill is liable to be corrected under clause 6.1 of Section 6 of the Electricity Supply Code. The Electricity Act clearly provides a forum wherein in case any dispute is raised, the same is to be dealt with.

Once it is an accepted position that the petitioner has not ensured payment of electricity dues in question, we are not inclined to entertain the present petition. However, it is always open to the petitioner to pursue remedy as is provided to him under U.P. Electricity Act read with clause 6.1 of the Electricity Supply Code, 2005.

With these observations, the writ petition is dismissed.

Order Date :- 6.7.2016

Ram Murti